

AMENDMENT AND BASIC STRUCTURE

ARTICLE 368 • LIMITED CONSTITUENT POWER • CONSTITUTIONAL IDENTITY

Read top to bottom: routes → procedure → doctrine → application → evaluation → answer spine

Source/legal check: 7 September 2026 | One continuous revision rail

THREE ROUTES: FLEXIBILITY WITH ENTRENCHMENT

OUTSIDE ARTICLE 368

- Articles 2-4, 11, 169, 239A
- Fifth para 7; Sixth para 21
- Ordinary law under exact enabling text

SPECIAL MAJORITY

- Total-membership majority
- Plus > = 2/3 present and voting
- Each House separately

FEDERAL ROUTE

- Same House majorities
- Plus > = half State legislatures
- Exact proviso subjects only

MAJORITY ARITHMETIC: DO NOT MIX THE DENOMINATORS

TOTAL MEMBERSHIP

- Full sanctioned strength
- Vacancies do not reduce it
- More than half required

PRESENT AND VOTING

- Ayes + noes form denominator
- Abstentions excluded
- At least two-thirds required

NOT EFFECTIVE MAJORITY

- Effective strength subtracts vacancies
- Used for selected removals elsewhere
- Never import it into Article 368

ARTICLE 368 PROCEDURE: SEPARATE HOUSES, NO SHORTCUT

INTRODUCE

Either House
Minister or private member
No prior Presidential recommendation

PASS

Each House separately
Dual special majority
No joint sitting

RATIFY IF NEEDED

Only proviso subjects
> = half State legislatures
Before Presidential presentation

ASSENT

President shall assent
No return/withholding
Act controls commencement

FEDERAL RATIFICATION: THE CLOSED TEXTUAL MAP

ARTICLE 368(2) PROVISIO — RATIFICATION BY NOT LESS THAN HALF THE STATES

NAMED ARTICLES

54, 55
73, 162
241, 279A

NAMED CHAPTERS

Ch IV Part V
Ch V Part VI
Ch I Part XI

DISTRIBUTION + VOICE

Any Seventh Schedule List
State representation in Parliament
Article 368 itself

STATE ROLE

Ratify or refuse passed text
No initiation or rewriting
No UT count or Governor assent

ARTICLE 13 DIALOGUE: FROM RIGHTS AMENDABILITY TO IDENTITY

1951

Shankari Prasad
Amendment not Art 13 law
First Amendment upheld

1964/65

Sajjan Singh
Rule reaffirmed
Early doubts in separate opinions

1967

Golak Nath
Amendment treated as law
Prospective overruling

1971

24th constituent power + assent
28th proviso + Art 31C
Parliamentary response

KESAVANANDA BHARATI: THE 13-JUDGE, 7:6 SETTLEMENT

WIDE POWER

- Every Part amendable
- Fundamental Rights amendable
- Preamble amendable
- 24th Amendment sustained

IDENTITY LIMIT

- No damage or destruction
- Basic framework survives
- Degree and effect matter
- Article 31C review exclusion failed

NO CLOSED LIST

- Overlapping judicial opinions
- Features must be attributed
- Transformative reform remains possible
- Severability may preserve valid parts

APPLICATION AND SELF-ENLARGEMENT: 1975-1980

INDIRA GANDHI 1975

39th Amendment part invalid
Free and fair elections
Rule of law + review

42ND SECTION 4

Article 31C expanded
All Directive Principles
FR-DPSP balance disturbed

42ND SECTION 55

Article 368(4)-(5)
Review exclusion
Unlimited power claim

MINERVA MILLS 1980

Sections 4 and 55 void
Limited power + review basic
FR-DPSP harmony basic

NINTH SCHEDULE: DATE -> RIGHT -> FEATURE -> EFFECT

ORIGIN

First Amendment, 1951
Article 31B + Ninth Schedule
Article 31A is distinct

WAMAN RAO

24 April 1973 cutoff
Pre-cutoff insertions not required
Later amendments open to challenge

I.R. COELHO 2007

Affected Part III right
Underlying basic feature
Damaging effect of immunity

REMEDY

Reviewable != automatically void
Basic-structure impact required
Severability where possible

BASIC FEATURES: CASE-ATTRIBUTED, NOT EXHAUSTIVE

DEMOCRATIC ORDER

- Kesavananda opinions: supremacy, democracy, secularism
- Indira Gandhi: fair elections, rule of law, review
- Bommai: federalism and secularism context

LIMITED GOVERNMENT

- Minerva: limited power + FR-DPSP harmony
- L. Chandra Kumar: Arts 32 and 226/227
- Coelho: rights/basic-feature impact

INSTITUTIONAL INDEPENDENCE

- NJAC: judicial independence
- 99th Amendment invalid
- Feature + text + case + damage

ORDINARY-LAW FIREWALL AND CURRENT STATUS

ANJUM KADARI 2024

Statute challenge needs competence
Or Part III / another provision
No free-standing basic-structure invalidity

131ST BILL 2026

289 yes / 230 noes / 538 voting
Total-membership limb passed
Two-thirds limb failed: negatived

106TH AMENDMENT

S.O. 10523D: 16 Apr 2026
Framework commenced
Article 334A gates remain

STATUS DISCIPLINE

Proposal != law
Commencement != operation
No invented dates or outcomes

LEGITIMACY: GUARDIAN OF IDENTITY OR JUDICIAL SUPREMACY?

CRITIQUE

- Unwritten and open-ended
- Counter-majoritarian finality
- Ex ante uncertainty
- Policy-veto risk

DEFENCE

- Article 368 grants amendment, not destruction
- Democracy needs future contestability
- Rights, federal voice and review
- Minerva blocks self-enlargement

SELF-RESTRAINT

- Text + structure + precedent
- Prove actual disabling damage
- Distinguish regulation from destruction
- Use narrow, severable remedies

FINAL ANSWER SPINE: TRANSFORMATION WITHOUT REPLACEMENT

PROCEDURE

Route
House thresholds
State consent
Assent/status

DOCTRINE

Article 13 dialogue
Kesavananda holding
Later applications
Ninth Schedule test

EVALUATION

Legitimacy critique
Constitutional defence
Self-restraint
Severability

VERDICT

Every Part amendable
Basic identity indestructible
Ordinary laws need express hook
New constitution != Article 368